Dharampal Singh Bhadauriya & Another vs State Of U.P. & Another on 2 August, 2018

Author: Karuna Nand Bajpayee

Bench: Karuna Nand Bajpayee

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HIGH COURT OF JUDICATURE AT ALLAHABAD


?A.F.R.

Court No. - 48

Case :- APPLICATION U/S 482 No. - 16230 of 2006


Applicant :- Dharampal Singh Bhadauriya & Another

Opposite Party :- State Of U.P. & Another

Counsel for Applicant :- Arun Kumar Singh

Counsel for Opposite Party :- Govt. Advocate


Hon'ble Karuna Nand Bajpayee,J.
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This application u/s 482 Cr.P.C. has been filed seeking the quashing of charge sheet dated 10.9.2005 as well as the entire proceedings of Criminal Case No. 1520 of 2006, State versus Dharampal Singh and others, u/ss 506 and 427 IPC, P.S. Sachendi, District Kanpur Nagar pending in the Court of M.M.VII, Kanpur Nagar.

It appears from the record that notice upon opposite party no.2 appears to have been served but neither any counsel on his behalf nor opposite party no.2 himself has appeared.

Heard learned counsel for the applicants and learned AGA for the State as well as perused the record.

Submission of learned counsel for the applicants is that actually the first informant Som Chand Gupta was the Pradesh Maha Sachiv of Samajwadi Party which was the ruling party at the relevant point of time and holding the same position he wielded enormous political clout and was a very influential person. It has been submitted that actually he was misusing his position in the party and was trying to grab the public lands which belong to the Gaon Sabha and on which a 'Nala' was flowing. The opposite party no.2 wanted to make a construction in a manner that was going to result in the complete destruction of the 'Nala'. As these intentions of opposite party no.2 were to the larger detriment of almost all the villagers at large, the villagers felt badly aggrieved by the same and tried to make lawful protest against such undesirable and illegal onslaught made by opposite party no.2. In this regard learned counsel for the applicant has placed reliance upon Annexure-4 to the application which indicates that civil litigation in that regard was also initiated and an injunction order in respect of Gata no. 596 was passed by the court. Further submission is that the villagers had protested en-mass against these illicit designs of grabbing the land by the opposite party no.2, who further misused his power and got the proceedings under Sections 107/116 Cr.P.C. initiated against 45 persons of the village. Learned counsel for the applicant has drawn the attention of the Court towards Annexure-3 to the application which was a blanket proceeding got initiated at the behest of opposite party no.2. Contention is that it is an irony that the wrong doer himself has shown the audacity to lodge this entirely concocted FIR in order to create pressure upon the applicants so that they may not protest or resist the land grabbing design of opposite party no.2 and may tamely subjugate and succumb before his political power. Civil litigation in which status quo order was passed the application was moved on behalf of Balwan Singh, who is one of the accused in this case. The argument is that the totality of the facts and circumstances of the case as are apparent on the face of record are such that the continuation of the criminal proceedings as a result of the chargesheet appear to be nothing except abuse of the court's process.

In this regard we may usefully keep in perspective the law laid down by Hon'ble Supreme Court in the case of State of Haryana Vs. Bhajan Lal 1992 SCC(Cr.) 426, in which certain categories have been recognized on the basis of which the criminal proceeding against a certain party or the accused may be quashed. It was observed by the Hon'ble Apex Court in Bhajan Lal's case as follows:-

> "The following categories can be stated by way of illustration wherein the extra-ordinary power under Article 226 or the inherent powers under Section 482 of the Code of Criminal Procedure can be exercised by the High Court either to prevent abuse of the process of any Court or otherwise to secure the ends of justice, though it may not be possible to lay down any precise, clearly defined and sufficiently channelised and inflexible guidelines or rigid formulae and to give an exhaustive list of myriad kinds of cases wherein such power should be exercised:
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> (1) where the allegations made in the First Information Report or the complaint, even if they are taken at their face value and accepted in their entirety do not prima facie constitute any offence or make out a case against the accused.
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> (2) where the allegations in the First Information Report and other materials, if any, accompanying the F.I.R. do not disclose a cognizable offence, justifying an

investigation by police officers under Section 156(1) of the Code except under an order of a Magistrate within the purview of Section 155(2) of the Code.

(3) where the uncontroverted allegations made in the FIR or complaint and the evidence collected in support of the same do not disclose the commission of any offence and make out a case against the accused.

(4) where the allegations in the FIR do not constitute a cognizable offence but constitute only a non-cognizable offence, no investigation is permitted by a police officer without an order of a Magistrate as contemplated under Section 155(2) of the Code.

(5) where the allegations made in the FIR or complaint are so absurd and inherently improbable on the basis of which no prudent person can ever reach a just conclusion that there is sufficient ground for proceeding against the accused.

(6) where there is an express legal bar engrafted in any of the provisions of the Code or the concerned Act (under which a criminal proceeding is instituted) to the institution and continuance of the proceedings and/or where there is a specific provision in the Code or the concerned Act, providing efficacious redress for the grievance of the aggrieved party.

(7) where a criminal proceeding is manifestly attended with mala fide and/or where the proceeding is maliciously instituted with an ulterior motive for wreaking vengeance on the accused and with a view to spite him due to private and personal grudge."

The facts and documents as have been submitted by the learned counsel for the applicants are such which does not create any doubt on the fact that the opposite party no.2 was wielding a higher position in political hierarchy of the then ruling party. It is also clear that a blanket proceeding under Section 107 Cr.P.C. got initiated against dozen of villagers is also a proof of the same. It is not difficult to understand to read in between the line that there was an order passed with regard to the land of the 'Nala'. The present fictitious case has been lodged in order to put undue pressure so that the protest against the land grabbing intention may be silent.This Court finds that the entire criminal prosecution is inspired by express malafide and, therefore, must not be allowed to continue.

In the considered view of this Court this matter falls both in category nos.(5) and (7) mentioned hereinabove. This Court finds reason to hold that the entire criminal prosecution is inspired by malice and the version contained therein is full of high improbabilities and the continuation of the criminal proceedings on that basis is likely to result in abuse of court's process, and therefore, the entire criminal proceeding of the charge sheet is liable to be quashed.

In this view of the matter this application is allowed and the entire proceeding of charge sheet in question against the accused-applicants stand quashed.

A copy of this order be certified to the lower court concerned forthwith.

Order Date :- 2.8.2018 CPP/-